

		single incident. Therefore, there is not one single "scene of the incident" to be inspected. Thus, the Court finds that Plaintiff's objection has merit and no further response is warranted. Nos 13.1 and 13.2 These interrogatories concern whether any surveillance was conducted by Plaintiff or anyone acting on its behalf. Plaintiff's response states that Plaintiff retained an investigator who conducted surveillance of Defendants Ali Enteshari and Amin Enteshari in late 2023 near the Rockrose Way address in Irvine, California and Plaintiff will produce the surveillance videos, which reflect the names and contact information of the investigators and the custodians of any surveillance photographs, along with any nonprivileged written reports. Defendant again argues that Plaintiff's reliance on section 2030.230 is improper. However, the burden of ascertaining the names and contact information of the investigators from the produced surveillance videos and written reports would be substantially the same for both Plaintiff and Defendant. The Court finds that Defendant's arguments against section 2030.230 lack merit and no further responses are warranted. In light of all the above, the Motion to Compel Further Responses to Form Interrogatories is GRANTED as to No. 9.1 and DENIED as to all other disputed interrogatories. Plaintiff shall serve a further response within 15 days. No sanctions. <i>Moving party to give notice.</i>
102	James Bay Resources Limited vs. Lockett & Horwitz, 23-01313001	Plaintiffs, James Bay Resources Limited and Stephen Shefsky (collectively, "Plaintiffs") move for an order compelling Defendant John Robert Armstrong ("Armstrong") to serve initial, code-compliant responses, without objections, to Form Interrogatories, Set One; Requests for Production of Documents, Set One; Special Interrogatories, Set One; and Requests for Admissions, Set One. Plaintiffs also seek an order that the matters specified in Requests for Admissions, Set One be

		deemed admitted, unless Defendant Armstrong serves verified, code-compliant responses prior to the hearing, as required by Code of Civil Procedure section 2033.280. Plaintiffs additionally seek monetary sanctions against Defendant Armstrong in the amount of \$9,375. The Court notes that the proof of service attached to the motion indicates that the motion was served on Bernard C. Jasper, Esq. of Jasper Law, the attorney for Defendant, Lockett & Horwitz, and on Armstrong as "Defendant in Pro Per." In addition, Plaintiffs' counsel provides that they served Defendant Armstrong with Form Interrogatories, Set One and Requests for Production, Set One on May 23, 2025, as well as Special Interrogatories, Set One and Requests for Admission, Set One, on September 17, 2025. (ROA 165, Declaration of Jeanine Zalduendo, ¶¶ 2-3, Exs. A-D.) The proof of service attached to each discovery set indicates that the discovery was served by e-service on Bernard Jasper, Jasper Law and John Robert Armstrong, Armstrong Law Group. (Ibid.) However, it appears that Armstrong's attorney of record is Lockett & Horwitz. On October 12, 2023, Lockett & Horwitz filed a Notice of Change of Address indicating that it was the attorney for Armstrong, and filed a demurrer and motion to strike on Armstrong's behalf. (ROA 15, 28, 51, 82.) The Answers filed on behalf of Armstrong on December 18, 2024 (ROA 109), and December 27, 2024 (ROA 115), indicate that Armstrong is represented by Lockett & Horwitz. The first page of a pleading identifies "the attorney for the party in whose behalf the paper is presented." (California Rules of Court, rule 2.111(1).) "Whenever a document is required to be served on a party, the service must be made on the party's attorney if the party is represented." (California Rules of Court, rule 1.21(a).) Code of Civil Procedure section 1015 states, in part: "[I]n all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney
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		instead of the party, except service of subpoenas, of writs, and other process issued in the suit, and of papers to bring the party into contempt. If the sole attorney for a party is removed or suspended from practice, then the party has no attorney within the meaning of this section." (Code Civ. Proc. § 1015.) The attorney of record for a party may be changed either by mutual consent of the party and attorney filed with the clerk or entered upon the minutes, or by court order upon application of either client or attorney, after notice from one to the other. (Code Civ. Proc. § 284.) It does not appear that Lockett & Horwitz has moved to be relieved as counsel of record, or that a substitution of attorney was filed on behalf of Armstrong. Therefore, neither the instant motion nor the discovery at issue was properly served on Armstrong and the instant motions to compel are DENIED, without prejudice. <i>Plaintiffs to give notice.</i>
103	Novak vs. Andry, 24-01414288	Defendant, Doran Andry ("Defendant"), moves for an order compelling Plaintiff, Hsiuyen Julie Novak ("Plaintiff"), to provide responses to Defendant's Requests for Production, Set One, and awarding sanctions for the reasonable attorneys' fees and costs incurred in bringing this motion in the amount of \$1,675.45. Defendant also moves for an order deeming facts admitted and awarding sanctions in the amount of \$2,075.45 against Plaintiff and Plaintiff's counsel, jointly and severally. "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (California Rules of Court, rule, 3.1300(c).) Here, no proof of service of the subject two motions to compel have been filed. In light of the above and the lack of any opposition, the motions are DENIED, without prejudice. <i>Defendant to give notice.</i>